

CONSTITUTIONAL ORIGIN AND ARTICLE DECODER

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| 1967 instability -> Committee on Defections -> 52nd Amendment Act, 1985. |
| Tenth Schedule commenced 1 March 1985; it amended Arts 101, 102, 190 and 191. |
| Art 102(2): Parliament member disqualified if disqualified under Tenth Schedule. |
| Art 191(2): same constitutional bridge for a State House. |
| Arts 101(3)(a)/190(3)(a): such disqualification leads to seat vacancy. |
| Answer line: constitutional disqualification, not crime or lifetime political ban. |
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PARAGRAPH 1 DEFINITIONS

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House = either House of Parliament, Legislative Assembly, or either State House.	
Legislature party = all members of that House belonging to the political party.	
Original political party = party to which member belongs for para 2(1).	
Political party is organisational/electoral; legislature party is House-specific.	
Subhash Desai: legislative headcount alone cannot manufacture party authority.	
Trap: two-thirds legislature-party strength is not itself a new political party.	
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PARAGRAPH 2 GROUNDS AND MEMBER TYPES

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Party member: voluntarily gives up membership OR violates para 2(1)(b).	
Whip chain: authorised direction -> contrary vote/abstention -> no prior permission	
-> no condonation by authorised party/person/authority within 15 days.	
Independent: joins any political party after election -> disqualified.	
Nominated: may join within 6 months of taking seat; joins later -> disqualified.	
Para 2(4): historical transition for members sitting at 1985 commencement.	
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CONDUCT, EXPULSION AND EVIDENCE

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| Ravi S. Naik (1994): voluntary giving up is wider than formal resignation; |
| it may be inferred from proved conduct, context and chronology.           |
| G. Viswanathan (1996): expulsion does not turn member into an independent; |
| deemed belonging to original party continues for Schedule purposes.         |
| Fair route: allegation -> disclosed material -> reply/evidence -> reasoned inference. |
| Trap: criticism or dissent alone is not an automatic statutory formula.     |
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PARAGRAPH 3 DELETED; PARAGRAPH 4 MERGER

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| 91st Amendment omitted the former one-third split defence from 1 January 2004. |
| Para 4 requires original-political-party merger within its full textual design. |
| Not less than two-thirds of legislature party must agree for merger deeming. |
| Accepting members and non-accepting members opting for separate group are protected. |
| Merger != post-election coalition; ECI symbol recognition alone is not the test. |
| Trap: two-thirds is necessary within para 4, not a free-standing licence to defect. |
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PARAGRAPHS 5, 6, 7 AND 8

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Para 5: narrow exemption for listed presiding officers leaving party for chair;	
no joining while in office; rejoining former party after ceasing office permitted.	
Para 6: Speaker/Chairman decides; if personally concerned, House elects member.	
Para 7 printed court-ouster text is invalid under Kihoto for want of ratification.	
Para 8: rules on records/reports/procedure, laid for 30 days before House;	
rules cannot enlarge grounds or remove notice, evidence, hearing and reasons.	
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KIHOTO AND JUDICIAL REVIEW

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Kihoto Hollohan (1992): core Schedule and para 6 substantially upheld.	
Speaker/Chairman deciding defection acts as a tribunal.	
Review survives under Arts 136, 226 and 227: constitutional violation, mala fides,	
natural-justice breach and perversity; it is not a routine merits appeal.	
Ordinarily review follows decision; grave irreversible interlocutory harm is exceptional.	
Basic-structure judicial review defeated para 7, not the whole 52nd Amendment.	
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INACTION, RESIGNATION AND TIMING

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Rajendra Singh Rana (2007): unsupported split recognition and failure to decide	
pending disqualification could not defeat the Schedule.	
Shrimanth Balasaheb Patil (2019): resignation does not erase earlier defection;	
Speaker cannot add a term-long election ban absent constitutional authority.	
Keisham (2020): ordinarily decide within 3 months, exceptions supported by reasons;	
three months is judicial norm, not express Schedule text; tribunal is proposal.	
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NABAM REBIA AND SUBHASH DESAI

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Nabam Rebia (2016): Speaker facing valid removal notice disabled from adjudicating.	
Subhash Desai (2023): correctness referred for larger-bench reconsideration.	
No later official merits ruling located through 8 September 2026: state both facts.	
Subhash: political party appoints whip/leader; Speaker identifies party authorisation.	
ECI symbol and Speaker defection tracks may proceed independently.	
Governor cannot decide intra-party leadership; Court is not ordinary first instance.	
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91ST-AMENDMENT REWARD CONTROLS

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Art 75(1A): Union Council of Ministers <= 15% of Lok Sabha.	
Art 164(1A): State Council <= 15% of Assembly, but at least 12 ministers.	
Arts 75(1B)/164(1B): para-2-disqualified party member barred from ministership.	
Art 361B: same period bars a remunerative political post.	
Period: disqualification -> old-term expiry OR earlier date declared re-elected.	
Trap: no permanent electoral ban and no bar ending merely at next session.	
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DEMOCRATIC BALANCE AND LEGAL FIREWALL

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Gain: mandate protection, stable ministry, reduced open office-driven crossing.	
Cost: broad whips, leadership centralisation, delayed Speaker orders, group engineering.	
Current law does not limit whips only to confidence or Money Bills.	
Merger != coalition defection != symbol dispute defection != bribery/privilege.	
Sita Soren (2024): bribery lacks legislative-privilege immunity; not a defection case.	
Reform: narrower whip + neutral/time-bound decider + clearer merger + party democracy.	
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ANTI-DEFECTION LAW | PANEL 12/12

PYQ FILTER, ANSWER SPINE AND VERDICT

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| 2022 Prelims Q16: nominated member may join within 6 months; no textual deadline. |
| 2025 Prelims Q88: para 6 decider is Speaker/Chairman; 'political party' is in Constitution. |
| 2023 GS-II supporting route: presiding-officer order, impartiality and good practice. |
| Prelims: category -> conduct -> time -> defence -> decider -> review -> consequence. |
| Mains: purpose -> text -> case -> incentive -> counter -> reform status -> verdict. |
| Verdict: retain stability principle; narrow discipline, neutralise decision and ensure |
| speed. |
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